Convention or a chemical tanker or an NLS tanker as defined in regulation 1 of Annex II to the present Convention.

Regulation 3
Exceptions and exemptions

General

1 Regulations of this Annex shall not apply to:

.1 any emission necessary for the purpose of securing the safety of a ship or saving life at sea; or

.2 any emission resulting from damage to a ship or its equipment:

.2.1 provided that all reasonable precautions have been taken after the occurrence of the damage or discovery of the emission for the purpose of preventing or minimizing the emission; and

.2.2 except if the owner or the master acted either with intent to cause

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
occurrence of the damage or discovery of the emission for the purpose of preventing or minimizing the emission; and

.2.2 except if the owner or the master acted either with intent to cause damage, or recklessly and with knowledge that damage would probably result.

Trials for ship emission reduction and control technology research

2 The Administration of a Party may, in cooperation with other Administrations as appropriate, issue an exemption from specific provisions of this Annex for a ship to conduct trials for the development of ship emission reduction and control technologies and engine design programmes. Such an exemption shall only be provided if the applications of specific provisions of the Annex or the revised NO x Technical Code 2008 could impede research into the development of such technologies or programmes. A permit issued under this regulation shall not exempt a ship from the reporting requirement under regulation 27 and shall not alter the type and

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
development of such technologies or programmes. A permit issued under this regulation shall not exempt a ship from the reporting requirement under regulation 27 and shall not alter the type and scope of data required to be reported under regulation 27. A permit for such an exemption shall only be provided to the minimum number of ships necessary and be subject to the following provisions:

.1 for marine diesel engines with a per cylinder displacement up to 30 L, the duration of the sea trial shall not exceed 18 months. If additional time is required, a permitting Administration or Administrations may permit a renewal for one additional 18-month period; or

.2 for marine diesel engines with a per cylinder displacement at or above 30 L, the duration of the ship trial shall not exceed five years and shall require a progress review by the permitting Administration or Administrations at each intermediate survey. A permit may be withdrawn based on this review if the

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
progress review by the permitting Administration or Administrations at each intermediate survey. A permit may be withdrawn based on this review if the testing has not adhered to the conditions of the permit or if it is determined that the technology or programme is not likely to produce effective results in the reduction and control of ship emissions. If the reviewing Administration or Administrations determine that additional time is required to conduct a test of a particular technology or programme, a permit may be renewed for an additional time period not to exceed five years.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 10 -

Emissions from seabed mineral activities

3.1 Emissions directly arising from the exploration, exploitation and associated offshore

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
Emissions from seabed mineral activities

3.1 Emissions directly arising from the exploration, exploitation and associated offshore processing of seabed mineral resources are, consistent with article 2(3)(b)(ii) of the present Convention, exempt from the provisions of this Annex. Such emissions include the following:

.1 emissions resulting from the incineration of substances that are solely and directly the result of exploration, exploitation and associated offshore processing of seabed mineral resources, including but not limited to the flaring of hydrocarbons and the burning of cuttings, muds, and/or stimulation fluids during well completion and testing operations, and flaring arising from upset conditions;

.2 the release of gases and volatile compounds entrained in drilling fluids and cuttings;

.3 emissions associated solely and directly with the treatment, handling or storage of seabed minerals; and

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
cuttings;

.3 emissions associated solely and directly with the treatment, handling or storage of seabed minerals; and

.4 emissions from marine diesel engines that are solely dedicated to the exploration, exploitation and associated offshore processing of seabed mineral resources.

3.2 The requirements of regulation 18 of this Annex shall not apply to the use of hydrocarbons that are produced and subsequently used on site as fuel, when approved by the Administration.

Unmanned non-self-propelled barges

4 The Administration may exempt an unmanned non-self-propelled (UNSP) barge from the requirements of regulations 5.1 and 6.1 of this Annex by means of an International Air Pollution Prevention Exemption Certificate for Unmanned Non-self-propelled (UNSP) Barges, for a period not exceeding five years provided that the barge has unde rgone a survey to confirm that conditions referred to in regulations 2.1.32.1 to 2.1.32.3 of this Annex are met.

Regulation 4

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
confirm that conditions referred to in regulations 2.1.32.1 to 2.1.32.3 of this Annex are met.

Regulation 4
Equivalents

1 The Administration of a Party may allow any fitting, material, appliance or apparatus to be fitted in a ship or other procedures, alternative fuel oils, or compliance methods used as an alternative to those required by this Annex if such fitting, material, appliance or apparatus or other procedures, alternative fuel oils, or compliance methods are at least as effective in terms of emissions reductions as those required by this Annex, including any of the standards set forth in regulations 13 and 14.

2 The Administration of a Party that allows a fitting, material, appliance or apparatus or other procedures, alternative fuel oils, or compliance methods used as an alternative to those required by this Annex shall communicate to the Organization for circulation to the Parties particulars thereof, for their information and appropriate action, if any.

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
required by this Annex shall communicate to the Organization for circulation to the Parties particulars thereof, for their information and appropriate action, if any.

3 The Administration of a Party should take into account any relevant guidelines developed by the Organization pertaining to the equivalents provided for in this regulation.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 11 -

4 The Administration of a Party that allows the use of an equivalent as set forth in paragraph 1 of this regulation shall endeavour not to impair or damage its environment, human health, property or resources or those of other States.

Chapter 2 Survey, certification and means of control

Regulation 5
Surveys

1 Every ship of 400 gross tonnage and above and every fixed and floating drilling rig or

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
Chapter 2 Survey, certification and means of control

Regulation 5
Surveys

1 Every ship of 400 gross tonnage and above and every fixed and floating drilling rig or other platform shall, to ensure compliance with the requirements of chapter 3 of this Annex, be subject to the surveys specified below: